

Public International Law

Chapter Seven

Use of Force Under International Law

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History of the law on the use of force under International Law

- For centuries, states have resorted to force in their international relations in order to achieve particular, desired aims.
- The use of violence has proved to be an accepted, although tragic in its consequences, method of resolving disputes between states.
- States reserved the right to wage war without any internationally agreed regulatory framework.
- Nevertheless, over time, the concepts of ‘just and unjust war’ emerged.

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- The distinction between the two can be traced back to ancient Rome and the Fetials (*fetiales*), a group of priests who were responsible for maintaining peaceful internal and external relations and who gave rise to fetial law (*ius fetiale*) – religious law regarding the process of creation, interpretation and application of treaties and regulations on the declaration of war.
- The concept of ‘just war’ has changed over centuries (Von Elbe, 1939).

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- The doctrine of ‘just war’ was further influenced by Christian theologians such as St. Augustine and St. Thomas Aquinas, the latter famously stated in *Summa Theologica* that the three criteria for just war are:
 1. It should be waged by a sovereign authority (prohibition of waging a private war)
 2. It must have a just cause (punishment of wrongdoers)
 3. A just cause must be accompanied by the right intention.

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- Together with the rise of independent states in Europe, the doctrine began to evolve.
- In light of the growing number of sovereign states, wars started to be seen and defined as a state of legal affairs rather than a matter of subjective moral judgment.
- States no longer found themselves in a position to judge if another state's reason for resorting to force was just or not.

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- This approach was supported by the rise of positivism, which strongly focused on the idea of sovereignty and by the Peace of Westphalia 1648, which established the European system of the balance of power.
- This system survived in Europe until the beginning of the twentieth century, effectively coming to an end with the outbreak of the First World War.

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- Under the 1919 Covenant of the League of Nations, member states were required to submit any inter-state disputes for arbitration or seek other forms of judicial settlement at the League's Council.
- In the aftermath of the First World War efforts were made to rebuild international relations between states through the establishment and operation of an international institution which would play a central role in ensuring that such acts of aggression would not occur again.

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- The League of Nations (LON) was created in 1919 with a view to achieving this aim.
- However, the Covenant did not in fact revoke the right of states to resort to war, although it subjected this provision to some limitations.
- In 1928, another attempt at the legal regulation of the use of force was made, in the form of the General Treaty for Renunciation of War as an Instrument of National Policy, more commonly referred to as the Kellogg–Briand Pact.

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- Parties to this treaty declared that they ‘condemn recourse to war’ and agreed to ‘renounce it, as an instrument of national policy in their relations with one another’ (Article 1).
- The outbreak of the Second World War in 1939 once again marked the end of peaceful international relations.

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- The tragic events of this international conflict led to the adoption of the Charter of the United Nations (UN Charter) in 1945 resulting in the development of a framework, aimed at regulating the use of force by members of the international community.
- That system remains in force.
- **The post-1945 legal framework**
- The current legal framework regulating the use of force in international law is enshrined in the UN Charter.

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- The maintenance of international peace and security is the primary purpose of the UN (Article 1(1) UN Charter). This includes:
- prevention and removal of threats to the peace, [...] the suppression of acts of aggression or other breaches of the peace, [...] and in conformity with the principles of justice and international law, adjustment or settlement of international disputes or situations which might lead to a breach of the peace.
- Therefore, as a general rule of international law, the use of force is prohibited.

Jus ad Bellum v. Jus in Bello

- The law of war is the component of international law that regulates the conditions for initiating war (jus ad bellum) and the conduct of warring parties (jus in bello).
- It define sovereignty and nationhood, states and territories, occupation and other critical terms of law.
- The law of war is considered distinct from other bodies of law.

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- Jus ad bellum:
- It refers to the conditions under which States may resort to war or to the use of force in general.
- The prohibition against the use of force amongst States and the exceptions to it (self-defense and UN authorization for the use of force), set out in the UN Charter of 1945, are the core ingredients of jus ad bellum.

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- The ius ad bellum (law on the use of force) or ius contra bellum (law on the prevention of war) seeks to limit resort to force between states.
- Under the UN Charter, states must refrain from the threat or use of force against the territorial integrity or political independence of another state (Article 2 (4)).
- Exceptions to this principle are provided in case of self-defense or following a decision adopted by the UN Security Council under Chapter VII of the UN Charter.

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- It is another word for “right to war”.
- It is a set of criteria that are to be consulted before engaging in war in order to determine whether entering in war in order to determine whether entering into war is permissible, that is, whether it will be a just war.
- This is distinct from the set of rules that ought to be followed during a war, known as *jus in bello*.

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- The principles of jus ad bellum are:
 1. Having just cause;
 2. Being a last resort;
 3. Being declared by a proper authority;
 4. Possessing right intention;
 5. Having reasonable chance of success and
 6. The end being proportional to the means used.

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- Jus in bello:
- It regulates the conduct of parties engaged in an armed conflict.
- IHL (International Humanitarian Law) is synonymous with jus in bello; it seeks to minimize suffering in armed conflict to the greatest extent possible.
- It is the law that governs the way in which warfare is conducted.

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- It is purely humanitarian, seeking to limit the suffering caused.
- It is independent from questions about the justification or reasons for war, or its prevention, covered by jus ad bellum.
- IHL applies to the belligerent parties irrespective of the reasons for the conflict or the justness of the causes for which they are fighting.
- If it were otherwise, implementing the law would be impossible, since every party would claim to be a victim of aggression.

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- Moreover, IHL is intended to protect victims of armed conflicts regardless of party affiliation.
- That is why jus in bello must remain independent of jus ad bellum.
- The Principles of jus in bello:
 1. The Principle of Discrimination and Non-Combatant Immunity
 2. The Principle of Proportionality

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- The difference between jus ad bellum and jus in bello
- The purpose of international humanitarian law is to limit the suffering caused by war protecting and assisting its victims as far as possible.
- The law therefore addresses the reality of a conflict without considering the reasons for or legality of resorting force.
- It regulates only those aspects of the conflict which are humanitarian concern.

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- It is what is known as jus in bello (law in war).
- Its provisions apply to the warring parties irrespective of the reasons for the conflict and whether or not the cause upheld by either part is just.
- The jus ad bellum (law on the use of force) or jus contra bellum (law on the prevention of war) on the other hand seeks to limit resort to force between states.

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- Jus ad bellum is the law of recourse to force.
- But, jus in bello is the law governing the conduct of hostilities.
- Jus ad bellum is traditionally perceived as the body of law which provides grounds justifying the transition from peace to armed force, while jus in bello is deemed to define the conduct and responsibilities of belligerent nations, neutral nations and individuals engaged in armed conflict in relation to each other and to protected persons.

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- Note that the guidelines governing justice in war (jus in bello) are distinct from those of jus ad bellum or justice of war.
- Even if a nation lacks just cause for war, it may fight justly once war has begun.
- Conversely, a nation with just cause may fight unjustly.

The Concept, Nature and Meaning of Use of Force

- In international law, the notion of “use of force” has always been concerned with the relationship between states, not regarding the purely domestic use of force by a state’s authorities against its civilians (see International Law Regarding the Conduct of War).
- In international law, acts such as the latter may be ruled by treaties on human rights and on the rights of minorities.

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- Thus, dealing with the use of force in international law relates only to a very specific sector of perils of human life.
- There is extensive debate about the exact meaning of ‘threat or use of force’ but no general agreement among members regarding the kind of force referred to.
- One view hold that ‘force’ means ‘armed force’ and does not include political and economical pressure.

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- It argues that this interpretation is reasonable, supported by the records of discussion at San Francisco and other provisions of the Charter like Article 41, 46 and Preamble of the UN Charter.
- To them, broader interpretation would lead to practical difficulties in distinguishing between permissible and impermissible pressures.
- On the other hand, the other view holds that there is no legal reason why 'force' should not be interpreted to include political and economic pressure except in specific cases, since the Charter does not make a sharp distinction between armed and other forms of forces.

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- That from what could have been the intentions of the authors of the Charter, its provisions must be interpreted in the light of present needs and developments; and the political and economical coercion could be as great as threat to the political independence of states under present conditions as military force.
- The jus ad bellum of today is not simply a product of the UN Charter.

Views on the Interpretation of the Prohibition of the Threat or Use of Force, Article 2 (4) of the UN Charter

- There was a web of customary and treaty law, which regulated the unilateral use of force, by states.
- The Charter simply ushered in a completely new era based on the previous development of the Covenant of the League of Nations and Kellogg Briand Pact.
- Before the ratification of the UN Charter, the right of states to use armed force was regulated by a mix of customary and treaty law.

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- There was no general prohibition on the use of force by customary law, although the Kellogg-Briand Pact did stipulate a ban on the right to resort to war.
- By 1945, self-defense had emerged as an exception to conditions for its lawful exercise.
- When the Charter of the UN was drafted in San Francisco in 1945, one of its aims was redressing the shortcomings of the Covenant of the League of Nations and Kellogg-Briand Pact.

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- Article 2 (4) is the pivot on which the present day jus ad bellum is hinged.
- The Article proclaims:
- ‘All members shall refrain in their international relations from the threat or use of force against the territorial integrity or political independence of any State, or in any other manner inconsistent with the purposes of the United Nations’.
- It moves around beyond Kellogg-Briand Pact, it avoids the term ‘war’ and ‘threat or use of force’.

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- ‘Use of force’ in international relations includes war, but the prohibition transcends war and covers also forcible measures short of war.
- The ‘threat or use of force’ abolished in Article 2 (4) applies only in the international relations’ of Members as well as non-Members as stipulated in Article 2(6) not domestic conflicts.
- The choice of concepts, ‘threat or use of force’ was most innovative on the part of the framers of the Charter.

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- The concepts are comprehensive than war.
- War had a technical (but imprecise) sense in international law and states often engaged in hostilities while denying that they are technically in a state of war, the hostility could range from minor border incidents to extensive military operations.
- The restrictive and technical interpretation of ‘war’ and ‘resort to war’ was used by Japan against China in Manchurian conflict of 1931 and the undeclared war of 1937 and no state of war existed

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- The Article prohibit the ‘threat or use of force’ in international relations.
- The extent and meaning of force stated in this Article has raised controversies among scholars.
- The expression ‘force’ is not preceded by the adjective ‘armed’ in Article 2 (4) but in Preamble, Article 41 and 46.
- The issue is whether ‘force’ in this Article transcend ‘armed force’ to political and economic coercion or not.

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- Brazil's proposal during the drafting of the Article that states should be required to refrain from "economic measures" was rejected.
- It is not clear whether this was because it was intended not to prohibit economic force or because the term 'force' in the Article was thought sufficient to cover it without specific mention.
- Goodrich, Hambo and Simons contend that:

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- It seems reasonable to conclude that while various forms of economic and political coercion may be treated as threats to the peace, as contrary to certain of the declared purposes and principle of the Organization, or as violating agreements entered into or recognized principles of international law, they are not to be regarded as coming necessarily under the prohibition of Article 2(4), which is to be understood as directed against the use of armed force.

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- Article 2(4) should be read as a whole within the context of the UN Charter. Force contrary to ‘the purposes of the UN’ is also prohibited. Any threat or use of force by a state, other than in accordance with the exceptions provided for under the UN Charter, is contrary to, and prohibited by contemporary international law.
- The western states held that ‘force’ was limited to armed or physical force as stated in travaux préparatoires.

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- While several Latin American states, Africans, Asian states and Eastern bloc argues that the purpose of Article 2(4) was, inter alia, to protect the political independence of states and that this could be just as readily imperiled by economic and political pressure as by armed force.
- States should not be bound by the travaux préparatoires of 1940's.
- However, the nature of specific acts included in the text and the facts that such matters as coercion by other means are dealt with elsewhere in the text provide support for the view that a restrictive interpretation of the scope of the term 'force' is called for.

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- The term 'force' understood to imply armed force, is not necessarily restricted to the military forces, border security forces, irregular forces and even police forces.
- The use of force may be direct or indirect. Besides the conventional weapons, force would include bacteriological, biological and chemical devices, such as poison gas and nerve gas. It includes nuclear and thermonuclear weapons.
- Article 2(4) was supplemented by the 1970 General Assembly Declaration on principles of International Law concerning Friendly Relations and Co-operation among States in accordance with the Charter of the United Nations.

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- The Resolution is only a resolution and therefore not legally binding on Members.
- But it is regarded as representing the consensus of the international community on the legal interpretation to be given to the principles enunciated in the UN Charter.
- In Nicaragua case, the International Court of Justice denied that American economic sanctions against Nicaragua constituted ‘a breach of the customary-law principle of non-intervention’.

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